

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 26, 2015

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Mr. Cook, Mr. Johnson, Mr. Luna, Dr. Rinne (arriving at 6:04 p.m.), Mr. Roybal, Mr. Shanor (arriving at 6:01 p.m.), and Mr. Valdez. Absent: Ms. Williams. Also present: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited. (City Clerk note: Mr. Shanor joined the meeting)

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 12, 2015. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the NW1/4 of Section 21, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as The Bluffs, 10th Filing Annexation (located between Converse Avenue and Crestridge Drive, north of Foothills Road) (Postponed from January 12, 2015). Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Mr. Cook moved to postpone to February 9, 2015, seconded by Mr. Luna. Motion to postpone carried. Voting "yes" -- all members of the governing body present.

AN ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low Density Residential and LR-2 Low-Density Residential, Developing to MR-2 Medium-Density Residential, Developing for Cheyenne, Wyoming, the Bluffs, 10th Filing (located north of and adjacent to Foothills Road between Point Bluff and Mountain Road). (City Clerk note: Dr. Rinne joined the meeting) Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed Use Business Emphasis for Lot 2, Block 1, Triumph Addition, 2nd Filing (located north of and adjacent to Grand Harmony Boulevard, west of Center Drive) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] RESOLUTION - Designating the Sundays during 2015 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 A.M. the following day. Motion (per Consent Agenda) carried. (#5648)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Triumph Addition, 2nd Filing, a replat of Lot 1, Block 1, Triumph Addition; Lot 1, Block 4, Harmony Center; and a portion of Grand Harmony Drive and Center Drive rights-of-way, Cheyenne, Wyoming (located at the northwest corner of the intersection of W. College Drive and Grand Harmony Blvd). Motion (per Consent Agenda) carried. (#5649)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Nelson Subdivision, a replat of the north 180.29 feet of Tract 12, Clear View Tracts, Laramie County, Wyoming (located at the southeast corner of the intersection of E. Fox Farm Road and Avenue C-2). Motion (per Consent Agenda) carried. (#5650)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 10th Filing, a replat of all of Lots 1-11, Block 9, The Bluffs, 7th Filing; a portion of Lot 1, Block 1, Crestridge; and a portion of the NW¹/₄ of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to Foothills Road between Point Bluff and Mountain Road) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Capitol Basin Flood Control Project -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) grant agreements for three 2015 CLG grants -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing approval of a corridor plan for a portion of the Cheyenne Business Parkway (located on Campstool Road between Burlington Trail and Christensen Road) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] RESOLUTION - Authorizing a special use permit for a creative sign program for a portion of the Cheyenne Business Parkway (located on Campstool Road between Burlington Trail and Christensen Road) -- referred to Public Services Committee (sponsor -- Mr. Cook).

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for use of a 2006 Chevrolet El Dorado bus for services for Stride clients. Motion (per Consent Agenda) carried (\$1.00 in revenue to the City). (#6280)

[CA] Professional Services Contract between the City of Cheyenne and Wyoming Business Council on behalf of Cheyenne Downtown Development Authority/Main Street for downtown revitalization project (Wyoming Business Council Grant) -- referred to Finance Committee.

Amendments No. 1 to City Contracts No. 6137, 6134 and 6135 between the City of Cheyenne, Parks and Recreation Department, and Reiman Corp. and Subsidiary; Laramie County, Wyoming, and WC Investments, Inc., respectively, relating to the Polk Avenue Project and pertaining to reimbursements to be paid to the City of Cheyenne for portions of the costs of construction of the Polk Avenue Project (Postponed from January 12, 2015). Mr. Brown moved to approve in an amount not to exceed \$107,505.38, seconded by Mr. Luna. Mr. Brown moved to amend by substitute, dated January 20, 2015, seconded by Dr. Rinne. Jeff Wiggins, Parks and Recreation Department, advised the dollar amounts have not changed in the substitute contract (No. 6134) but portions of the costs between the entities involved have changed to reflect final negotiated costs between the project partners. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#6137, #6134, #6135)

[CA] Change Order No. 1 to accepted Bid #R-17-14 for furnishing two new 2014-2015 cab and chassis units with rear load sanitation refuse collection bodies, 25 cubic yard with tippers, for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (amount not to exceed \$50,000.00).

[CA] Change Order No. 1 to accepted Bid #R-18-14 for furnishing one new 2014-2015 roll-off truck for the City of Cheyenne Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (amount not to exceed \$17,500.00).

[CA] Change Order No. 1 to accepted Bid #R-27-14 for furnishing two new cab and chassis units with 40 yard front loader refuse collection bodies for the City of Cheyenne, Sanitation Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (amount not to exceed \$30,000.00).

[CA] Change Order No. 1 to accepted Bid #R-11-15 for furnishing one new 2014-2015 small dozer (CAT D5K5-2 LGP or equal) for the City of Cheyenne, Landfill Division (Solid Waste Fund). Motion (per Consent Agenda) carried (amount not to exceed \$62,500.00).

[CA] Change Order No. 1 to accepted Bid #R-13-15 from Stotz Equipment, Cheyenne, Wyoming, for one new 2014 - 2015 utility farm tractor for the City of Cheyenne, Landfill Division (Solid Waste Equipment Lease). Motion (per Consent Agenda) carried (amount not to exceed \$17,000.00).

[CA] Amendment No. 3 to Contract No. 4173 between the City of Cheyenne, Cheyenne Police Department, and New World Systems Corporation, adding electronic citations interface and drivers

license reader interface (E-Citation Implementation Grant, 1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6014 between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Inc., Cheyenne, Wyoming, for the Fiscal Year 2013 City Overlay to reduce retainage (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6101 between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, Cheyenne, Wyoming, for the Fiscal Year 2014 Miscellaneous Concrete and Street Repairs Project to reduce retainage (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-8-15 for a contract between the City of Cheyenne, Parks and Recreation Department, and Construction Specialists, Inc., Cheyenne, Wyoming, for the Airport Golf Shop Grinding Room Addition Project (2011 - 2014 1% Sales Tax, Golf Capital Equipment Fund). Motion (per Consent Agenda) carried (amount not to exceed \$177,700.00). (#6281)

[CA] Consideration of Bid #R-18-15 for furnishing eight new thermal imaging cameras for the City of Cheyenne, Fire and Rescue Department (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Infrared System's Group, Hayden, Idaho, in an amount not to exceed \$67,960.00).

[CA] Consideration of Bid #M-11-15 for a contract between the City of Cheyenne, Police Department, and Beka Corporation, Rapid City, South Dakota, for fiber optics for the Cheyenne Public Safety Center Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$81,770.00). (#6282)

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Mason Properties, Inc. (d/b/a to be determined), 2801 E. Lincolnway, Cheyenne, Wyoming (License currently held by KZ Corporation d/b/a Daisy Duke's Bar, 2801 E. Lincolnway, Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Re-Appointment of Ted Gertsch to the Housing and Community Development Advisory Council. Mr. Brown moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointee).

Appointments of Nicholas A. Zuhner to the International Fire Code Board of Appeals; William Sean Casey and Gabriel Herrera to the Building Code Board of Appeals; Caroline Alston, Angel Antunez, Elizabeth Babbitt, Molly Black, Alex Cole, Shayna Engdahl, Alexandra Farkas, Lexi Ferrari, Liam Guille, Rachel Moseley, Yvette Moyte, Emily Piel, Aly Rowe, Jason Weber, Darnell Wheeler Jr., and Katelyn Williams to the Mayor's Youth Council. Mr. Brown moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointees).

[CA] Consideration of purchase from Improve Group, Inc., to provide and install high density mobile shelving in the Property and Evidence Division for the new Cheyenne Public Safety Center (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$204,790.95). (#6283)

Report on the On-Street Bicycle Striping and Signage Project involving Contract #6270 with Kolbe Striping, Inc. Barbara Kloth, Jordan Evans and Travis Kolbo spoke in support of the bike lane striping proposed for Carey and Pioneer Avenues, and in support generally for the overall project. Comments included the following topics: Safety for bicyclists and pedestrians; extensive studies and work that had been achieved on the approved project; alternative modes of transportation; community importance of a bicycle striping/signage program, and amenities affiliated with attracting and retaining young professionals and adults in the community. Upon inquiry, Jeff Wiggins, Parks and Recreation Department, provided information on a past report, including a "gap analysis", that had been conducted to review different routes, and potential and identified corridors, and provided information relating to old signage, and streets used by bicyclists that are not necessarily delineated to motorists and bicyclists for that use. Mayor Kaysen stated request for the report had been met.

Announcement was made of the Appointment of Brent Groesbeck to the Contractor Licensing Board, and Alane M. West to the Cheyenne Downtown Development Authority Board (DDA), to be confirmed February 9, 2015.

Announcement was made of a Public Hearing to be held February 9, 2015 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a bar and grill liquor license application filed with the City Clerk's Office, for Wasabi Japanese Steakhouse Inc. d/b/a Wasabi Japanese Grill and Bar, 4620 Grandview Avenue, Suite 205, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held February 9, 2015 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of approximately 12.75 acres of land situated as a portion of the W½ of the E½, Section 35, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located east of Pennsylvania Avenue, between 13th Street and Atlantic Drive).

Announcement was made of a Public Hearing to be held February 9, 2015, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of approximately 1.78 acres of land situated in Tract 45 & 46, Dell Range Addition, 4th Filing, Laramie County, Wyoming (located on the northeast corner of N. College Drive and Dell Range Boulevard).

Announcement was made of a Public Hearing to be held February 9, 2015, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a parcel of approximately 17,268 square feet of land situated in Lots 11 & 12, Block 1, Downey Addition, Laramie County, Wyoming (located north of and adjacent to Land Court, east of Grove Drive).

There being no further business to come before the governing body, the meeting was officially adjourned at 6:28 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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